



RESIDENTIAL LEASE-RENTAL AGREEMENT

This is a legally binding Agreement; if not understood, seek competent legal advice prior to signing.



THIS FORM IS DESIGNED AND INTENDED FOR THE LEASE-RENTAL OF RESIDENTIAL REAL ESTATE LOCATED IN THE STATE OF DELAWARE (EXCEPTING THOSE RENTAL AGREEMENTS WHICH ARE EXCLUDED FROM APPLICATION OF THE DELAWARE LANDLORD-TENANT CODE).

PARTIES.

Landlord: _____

Tenant: _____

Current Address: _____

Primary Phone #: _____ Email address: _____

	Total Due	Received	Balance Due Prior To Occupancy
Rent for the period of _____	\$ _____	\$ _____	\$ _____
Security Deposit:	\$ _____	\$ _____	\$ _____
Tax (if applicable):	\$ _____	\$ _____	\$ _____
Pet Deposit:	\$ _____	\$ _____	\$ _____
Other:	\$ _____	\$ _____	\$ _____
TOTAL:	\$ _____	\$ _____	\$ _____

Tenant hereby offers to rent from the Landlord and Landlord agrees to rent to Tenant the property situated in the City/Town of _____ County of _____, State of Delaware, and more fully described as _____ (hereafter referred to as the "Property"), with a mailing address of: _____

upon the following TERMS and CONDITIONS:

- TERM.** The term hereof shall commence on _____ and continue until 11:59PM on _____ (last day of term), for a total rent of _____, plus tax if applicable.
- RENT.** Rent shall be _____, per month, payable in advance, upon the _____ day of each calendar month to Landlord, or his authorized Agent, at the following address: _____ or at such other place as may be designated by Landlord from time to time. In the event the rent is not paid within five (5) days after due date, Tenant agrees to pay a late charge of \$_____. Tenant further agrees to pay \$_____ for each dishonored payment. The Landlord is entitled to make written demand for any rent if not paid when due. Any unpaid balances remaining after termination of occupancy shall accrue interest at the maximum rate allowed by law. Properties located within certain cities, municipalities and communities may be subject to additional rental taxes. Tenant agrees to pay any applicable rental tax monthly in addition to the rental amount stated herein.
- RENTAL APPLICATION.** In the event Tenant has completed a rental application, Tenant represents that all information contained therein is true and correct to the best of the Tenant's knowledge, information and belief. Providing incorrect or inaccurate information on the application is a breach of this Agreement and shall be grounds for termination of this Agreement by the Landlord.
- TENANT RESPONSIBILITIES.** It is expressly understood that this Agreement is between the Landlord and each signatory jointly and severally. Each signatory shall be responsible for timely payment of all rent and performance of all other provisions of this Agreement.
- USE AND OCCUPANCY.** The Property shall be used exclusively as a residence for no more than _____ persons. Guests staying more than fourteen (14) days in a forty-five (45) day period without prior written consent of Landlord shall constitute a violation of this Agreement.

Landlord's Initials

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Tenant's Initials

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6. **UTILITIES.** Tenant shall be responsible for the payment of all utilities and services unless otherwise provided in this Agreement. Any utilities or services which cannot be transferred into Tenant's name are still the responsibility of the Tenant unless otherwise agreed to herein and Tenant agrees to reimburse Landlord/Agent within ____ days of receipt of notice thereof. Tenant agrees not to turn off the utilities at the end of the lease term but to have them transferred back into the Landlord's name unless otherwise instructed by Landlord.
7. **PETS.** Unless otherwise provided by separate addendum, no pets of any kind shall be brought on the Property without the expressed written consent of the Landlord.
8. **ORDINANCES AND STATUTES.** Tenant shall comply with all statutes, ordinances and requirements of all municipal, state and federal authorities now in force, or which may hereafter be in force, pertaining to the use of the Property. Tenant further agrees to abide by all rules and regulations of any community or condominium in which the Property is a part of, whether promulgated before or after the execution of this Agreement. Tenant shall be responsible for any fees, fines or penalties assessed against Landlord resulting from any actions of the Tenant or Tenant's guests or invitees in violation of this provision.
9. **BUILDING/COMMUNITY RULES.** In the event that the Property is a portion of a building or community containing more than one unit, Tenant agrees to abide by any and all building/community rules, whether promulgated before or after the execution hereof, including, but not limited to, rules with respect to noise, odors, disposal of trash, pets, parking, grass cutting and use of common areas.
10. **NO SUBLETTING OR ASSIGNING OF RENTAL AGREEMENT.** Tenant shall not assign this Agreement. Tenant shall not sublet the Property or any portion thereof without the prior written consent of the Landlord, which consent shall not be unreasonably withheld.
11. **SUBORDINATION.** Tenant agrees that this Agreement shall be subordinate to any mortgages which may now be in effect or hereafter be placed upon the real property of which the Property forms a part, and to any and all advances made or to be made thereunder. Tenant agrees to sign any and all papers required by a lender or title insurer to confirm this.
12. **MAINTENANCE, REPAIRS OR ALTERATIONS.** Tenant acknowledges that the Property is in good order and repair, unless otherwise indicated herein. Tenant shall at all times, maintain the Property in a clean and sanitary manner including all equipment, appliances, furniture and furnishings therein and shall surrender the same, at termination hereof, in as good condition as received, normal wear and tear excepted. Tenant shall be responsible for damages caused by his negligence and that of his family or invitees and guests. Tenant shall not paint, paper or otherwise redecorate or make alterations to the Property without the prior written consent of the Landlord. Tenant shall irrigate and maintain any surrounding grounds, including lawns, and shrubbery, and keep the same clear of trash or weeds, if such grounds are a part of the Property and are exclusively for the use of the Tenant unless otherwise agreed herein. Tenant shall not commit any waste upon the said Property, or any nuisance or act which may disturb the quiet enjoyment of any Tenant in the building, or any surrounding neighbors. Tenant shall not have a waterbed on the Property without the prior written consent of the Landlord.
- Any defective condition of the Property which comes to the Tenants' attention, and which the Tenant has reason to believe is the duty of the Landlord or of another Tenant to repair, shall be reported in writing by the Tenant to the Landlord as soon as is practicable. The Tenants shall be responsible for any liability or injury resulting to the Landlord as a result of the Tenants' failure to timely report such condition, unless Landlord has actual notice of the defective condition. Tenant agrees, at their own expense, to replace any/all HVAC filters and smoke detector batteries no less than every six (6) months.
13. **INVENTORY.** The rental shall include the following appliances, furnishings and appointments:

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14. **DAMAGES TO PREMISES.** If the rental unit or any other property or appurtenances necessary to the enjoyment thereof are damaged or destroyed by fire or casualty to an extent that enjoyment of the rental unit is substantially impaired, and such fire or

Landlord's Initials

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other casualty occurs without fault on the part of the tenant, or a member of the tenant's family, or another person on the premises with the tenant's consent, the tenant may: (1) Immediately quit the premises and promptly notify the landlord, in writing, of the tenant's election to quit within 1 week after vacating, in which case the rental agreement shall terminate as of the date of vacating. If the tenant fails to notify the landlord of the tenant's election to quit, the tenant shall be liable for rent accruing to the date of the landlord's actual knowledge of the tenant's vacating the rental unit or impossibility of further occupancy; or (2) If continued occupancy is lawful, vacate any part of the premises rendered unusable by fire or casualty, in which case the tenant's liability for rent shall be reduced in proportion to the diminution of the fair rental value of the rental unit. (b) If the rental agreement is terminated, the landlord shall timely return any security deposit, pet deposit and pre-paid rent, except that to which the landlord is entitled to retain pursuant to the Delaware Landlord Tenant Code. Accounting for rent in the event of termination or apportionment shall be made as of the date of the fire or casualty.

15. ENTRY AND INSPECTION. Landlord or Landlord's Agent shall have the right to enter the Property: (a) in case of emergency; (b) to inspect the Property, make necessary or agreed repairs, decorations, alterations, improvements, and supply necessary or agreed services, exhibit the Property to prospective buyers, mortgagees, tenants, workmen, or contractors; or (c) when Tenant has abandoned or surrendered the Property. Except under (a) and (c), entry maybe made only during normal business hours, and with at least forty-eight (48) hours prior notice to Tenant given in accordance with the Landlord Tenant Code, unless otherwise agreed to by addendum to this Agreement.

16. INDEMNIFICATION. To the fullest extent permitted by law, Landlord or Landlord's Agent shall not be liable for any damage or injury to Tenant, or any other person, or to any personal property, occurring on the Property or any part thereof, or in common areas thereof, unless such damage is the proximate result of the negligence or unlawful act of the Landlord, his agents, or his employees. Tenant agrees to hold Landlord and Agent harmless from any claims for damages, no matter how caused, except for injury or damages caused by willful act or negligence of Landlord, his Agents, or employees. Landlord's insurance does not cover Tenant's personal property. Tenant is encouraged to obtain Tenant's insurance for their contents and personal liability.

17. POSSESSION. If the Landlord fails to put the Tenant into full possession of the Property at the beginning of the agreed term, the rent shall abate during any period the Tenant is unable to enter and:

- I. Upon notice to the Landlord, the Tenant may terminate the rental agreement at any time the Tenant is unable to enter into possession; and the Landlord shall return all monies paid to the Landlord for the rental unit, including any pre-paid rent, pet deposit and security deposit; and
- II. If such inability to enter is caused wrongfully by the Landlord or by anyone with the Landlord's consent or license due to substantial failure to conform to existing building and housing codes, the Tenant may recover reasonable expenditures necessary to secure equivalent substitute housing for up to one (1) month. In no event shall such expenditures under this subsection exceed the agreed upon rent for one (1) month. Such expenditures may be recovered by appropriate action or proceeding or by deduction from the rent upon the submission of receipts for same.

If such inability to enter results from the wrongful occupancy of a holdover Tenant and the Landlord has not brought an action for summary possession against such holdover Tenant, the entering Tenant may maintain an action for summary possession against the holdover Tenant.

18. DEFAULT. Should the Tenant fail to pay rent when due, or otherwise violate any of the provisions of this Agreement, and should such failure to pay rent or other violation continue after proper notice of such default is given in the manner required by law, five (5) days notice for unpaid rent and seven (7) days notice for all other violations, then the Landlord may elect to (a) continue the Agreement in effect and enforce all his rights and remedies hereunder, including the right to recover the rent as it becomes due, or (b) at any time, terminate all of the Tenant's rights hereunder and recover from Tenant all damages permitted herein, or by law. If Tenant abandons or vacates the Property while in default of the payment of rent, Landlord may consider any personal property left on the Property to be abandoned and may dispose of the same in any manner allowed by law.

19. SECURITY. The security deposit set forth shall secure the performance of the Tenant's obligations as defined below:

- I. Reimburse the Landlord for the actual damages caused to the Property by the Tenant which exceed normal wear and tear or which cannot be corrected by painting and ordinary cleaning; and/or,
- II. Pay the Landlord for all rental arrearage due under this Agreement, including Service Fees and rental due for premature

Landlord's Initials

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Tenant's Initials

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termination or abandonment of this Agreement by the Tenant; and/or,

- III. Reimburse the Landlord or their agent for all reasonable expenses incurred in renovating and re-renting the Property caused by the premature termination of this Agreement by the Tenants, which included termination pursuant to 25 Del. C. 5314.

In the event a pet deposit has been paid by Tenant, any damage to the Property caused by a pet shall first be deducted from the pet deposit. Where the pet deposit is insufficient, such damages may be deducted from the security deposit. Pursuant to the Landlord Tenant Code, the Landlord may, but shall not be obliged to, apply all portions of the said deposit on the account of Tenant's obligations hereunder. Any balance remaining upon termination, shall be returned to the Tenant. Tenant shall not have the right to apply the security deposit in payment of the last month's rent. All deposits will be held in escrow by the Landlord or their authorized Agent unless otherwise notified. Deposits shall be held in an account with _____, a federally insured banking institution with an office that accepts deposits in Delaware.

- 20. DEPOSIT REFUNDS.** Within twenty (20) days after the lawful termination or expiration of any rental agreement, the landlord shall provide the tenant with an itemized list of damages to the premises and the estimated costs of repair for each and shall tender payment to the tenant for the difference between the security deposit and such costs of repair of damage to the premises provided the total costs of repair are less than the amount of the security deposit. In the event the total costs of repair on the itemized list provided to the tenant equal or exceed the amount of the security deposit, the landlord may retain the entire amount of the security deposit and thereafter pursue any and all legal remedies available by law.
- 21. FAIR HOUSING.** All Parties agree to comply with all federal and state Fair Housing and Civil Rights laws in the rental of the Property and further agree specifically not to discriminate against any person because of RACE, COLOR, NATIONAL ORIGIN, RELIGION, CREED, SEX, MARITAL STATUS, FAMILIAL STATUS, MILITARY STATUS, AGE, SEXUAL ORIENTATION, GENDER IDENTITY, SOURCE OF INCOME, OCCUPATION, CURRENT HOUSING STATUS and/or DISABILITY, or any other protected classes, as may from time to time be added or amended by law.
- 22. TERMINATION.** Either Landlord or Tenant may terminate this Agreement upon the expiration date by giving a minimum of sixty (60) days written notice prior to the last day of the term hereof, whereby this Agreement shall terminate upon its expiration date. Tenant may terminate this Agreement upon thirty (30) days written notice, which thirty-day period shall begin on the first day of the month following the day of actual notice, provided the Tenant can satisfy one of the requirements of the exceptions as set forth in 25 Del C §5314. In such event the Tenant shall provide Landlord with sufficient documentation to verify the Tenant's right to early termination. In the event a military service member qualifies under §535 of the Service members Civil Relief Act (50 USC App §§501 et seq), no early termination fee will be charged. On or before the expiration date, the Tenant shall surrender all keys, garage remotes, or other components of access to the Landlord or authorized agent at the address listed in Section 2.
- 23. HOLDOVER TENANCY.** In the event the term of this Agreement is for one (1) year or longer and the Landlord does not give the Tenant at least sixty (60) days written notice prior to the expiration of the term, and the Tenant does not give at least sixty (60) days written notice to the Landlord prior to the expiration of the term, of either's intention to terminate this Agreement upon the end of the term, then the term shall become month to month and all other provisions shall continue in full force and effect until either party shall terminate the same by giving the other party sixty (60) days notice in accordance with the Delaware Landlord Tenant Code. Said sixty (60) days shall begin on the first day of the month following the date of such notice.

Should the Landlord intend to renew this Agreement subject to amended or modified provisions, the Landlord shall give the Tenant a minimum of sixty (60) days written notice prior to the expiration of the term hereof. After receipt of such notice from the Landlord, should the Tenant fail to give notice to the Landlord at least forty-five (45) days prior to the last day of the term hereof of their intention to terminate the existing Agreement, the provisions of the amended or modified Agreement shall be deemed to have been accepted and agreed to by the Tenants and the terms of the Agreement, as amended, shall take full force and effect.

Should the Tenant continue in possession of the Property after the expiration of this Agreement without the Landlord's consent and after receiving proper notice from the Landlord, Tenant shall pay to the Landlord a sum of double the monthly rental under this Agreement, computed and pro-rated on a daily basis, for each day the Tenant remains in possession for any period. In addition, the

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holdover Tenant without Landlord approval shall be responsible for any further losses incurred by the Landlord as determined by a proceeding before any Court of competent jurisdiction.

- 24. WAIVER.** No failure of Landlord to enforce any term hereof shall be deemed a waiver. The acceptance of rent by Landlord or Landlord's agent shall not constitute a waiver of the Landlord's right to enforce any term hereof.
- 25. NOTICES.** Any notice which either party may give, or is required to give, shall be given in accordance with the Delaware Landlord Tenant Code.
- 26. TIME.** Time is of the essence in this Agreement.
- 27. LANDLORD TENANT CODE.** THIS AGREEMENT SHALL BE GOVERNED BY THE DELAWARE LANDLORD TENANT CODE. The Tenant acknowledges receipt of a copy of the Landlord Tenant Code Summary. If the Property is in New Castle County outside a City, Tenant also acknowledges receipt of the New Castle County Tenants' Rights and Responsibilities Guide.
- 28. NOTICE OF EXTENDED ABSENCE.** Tenant shall notify the Landlord in writing prior to the first day of any anticipated absence from the Property of the Tenant for more than seven (7) days. Failure to give said notice may be treated as abandonment of the Property and may be grounds for the termination of this Agreement. Tenant agrees to keep utilities on and adequate heat and A/C (if applicable) in the unit during any extended absence from the Property.
- 29. ADDITIONAL TERMS AND CONDITIONS.**

- 30. CONSUMER INFORMATION STATEMENT (CIS).** The parties acknowledge that they have previously received, read and executed the Delaware Consumer Information Statement for Consumers seeking to Rent Residential Property and confirm the following agency relationships exist.

- I. _____, Listing Broker
☐ Landlord's Agent ☐ Dual Agent
- II. _____, Licensee
☐ Landlord's Designated Agent ☐ Designated Dual Agent
- III. _____, Renting Broker
☐ Tenant's Agent ☐ Dual Agent ☐ Landlord's Subagent
- IV. _____, Licensee
☐ Tenant's Designated Agent ☐ Designated Dual Agent ☐ Landlord's Subagent

ATTACHMENTS. If checked, tenant will initial to acknowledge receipt of the following attachments that are made a part of this lease Agreement:

☐ Lead Based Paint Addendum	☐	☐ Utility Addendum	☐	☐ Furnishings Addendum	☐
☐ Radon Disclosure	☐	☐ Pet Addendum	☐	☐ City of Newark Addendum	☐
☐ Smoke Detector Pamphlet/Information	☐	☐ Entry Agreement	☐	☐ Right to Legal Representation Notice	☐
☐ Building/Community Rules	☐	☐ Entry Agreement with Lockbox Authorization	☐	☐ Landlord Tenant Code Summary	☐
☐ Other: _____					

- 31. ENTIRE AGREEMENT.** The foregoing constitutes the entire Agreement between the parties and may be modified only by written Agreement signed by both parties. All parties hereto certify that they are at least eighteen (18) years of age and have the legal capacity to enter into this Agreement. Tenant and Landlord agree that the invalidity of any one or more provisions of this Agreement shall not invalidate any other provision of the Agreement itself.

Landlord's Initials

Tenant's Initials

IN WITNESS WHEREOF, the parties have signed this Agreement on the date stated below, thereby showing their receipt of same and their intent to be bound by the terms of this Agreement.

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Landlord Date/Time

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Landlord Date/Time

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Tenant Date/Time

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Tenant Date/Time

All contact information below is included for informational purposes only and should not be construed as part of this agreement.

Listing Broker

Renting Broker

Office Address

Office Address

Office Phone Number

Office Phone Number

Emergency Phone Number

Emergency Phone Number

Licensee

Licensee

Licensee Cell Phone Number

Licensee Cell Phone Number

Licensee Email Address

Licensee Email Address